

US Entry Plan — Verified Counsel Shortlist & Action Kit

Every contact fact below was re-verified 2026-07-27 against firm websites, bar directories, business databases (Apollo/Hunter), and — for government figures — the Federal Register and codified regulations. ✓ = independently verified this week. Flags are stated where verification fell short.

Executive summary

THE SITUATION, IN LEGAL TERMS

You are a Canadian citizen with roughly ten years of past unlawful presence in the US, at least one refused entry at a land border, and a passport that was once held and returned by mail — which together guarantee CBP holds a record on you (TECS, the border enforcement database). Under US federal law (Immigration and Nationality Act §212(a)), that history potentially triggers one or more **inadmissibility bars**:

- **§212(a)(9)(B) — the 10-year bar** for 1+ year of unlawful presence. Critically, it runs *from the date you left the US* — depending on your departure date, it may already be expired.
- **§212(a)(9)(A) — a 5-year bar**, but only if a refusal was processed as an *expedited removal* (Form I-860). If you were allowed to *withdraw your application for admission* (Form I-275), no bar attached. You may not know which happened — the paperwork or FOIA will say.
- **§212(a)(9)(C) — the permanent bar**, only if you ever re-entered or attempted to re-enter without being admitted *after* accruing the unlawful presence. This is the highest-stakes question in the file.
- **§212(a)(6)(C) — permanent misrepresentation bar**, only if you ever made a material false statement to border officers. This is why you never guess or shade an answer at any border, ever.

None of this is speculation territory: which bars apply is **knowable** from three facts — your exact departure date, the forms CBP served at each refusal, and the government's own records, which you can get for free via FOIA. Everything in the plan flows from establishing those three facts first.

WHY THIS REQUIRES A US-LICENSED ATTORNEY — NOT A CANADIAN LAWYER OR CONSULTANT

Admissibility to the United States is purely a question of **US federal law**, decided by US agencies — CBP at the border and its Admissibility Review Office for waivers, USCIS for records and policy. Only an attorney licensed in a US state can lawfully advise on US immigration law, file the **Form G-28** that makes them your representative of record before those agencies, correspond with CBP/USCIS on your behalf, and wrap your communications in US attorney-client privilege. Canadian immigration lawyers and RCIC consultants have no standing before US agencies unless they separately hold a US licence — your matter is simply outside their jurisdiction, the same way a US lawyer couldn't handle a Canadian PR application. This also explains a trap flagged later in this document: much of the "US entry waiver services" industry marketing to Canadians is staffed by people with no US licence at all. One helpful nuance: US immigration law is federal, so the attorney's state doesn't limit where they can act — a Washington or New York attorney can represent you at any port — but the Blaine/Bellingham corridor attorneys add working familiarity with the exact crossings you would use.

WHY NEXUS STAYS OFF THE TABLE

NEXUS is a trusted-traveller convenience for people who are already admissible — it is not a remedy and it forces nothing into the open. With this history the application would almost certainly be denied with a boilerplate reason, and the interview creates fresh opportunities for a misstatement that becomes a permanent §212(a)(6)(C) bar. The I-192 waiver, by contrast, is the instrument Congress created for exactly your situation.

WHY THE PLAN WORKS

The **I-192 waiver** (INA §212(d)(3)) forgives nearly every inadmissibility ground *for temporary entry* — including all four bars above. It is discretionary, judged on the *Matter of Hranka* factors: (1) risk of harm if

admitted, (2) seriousness of the past violation, (3) your reasons for entering — which the case law says "need not be compelling." A settled professional with a decade-old immigration violation, a clean record since, strong Canadian ties, and licensed engineering work for an established firm is a strong Hranka profile. Waivers are granted for up to 5 years (first grants often 1 year) and are renewable. Once the waiver is in hand, **TN "Engineer" status** is a same-day application at the border with a prepared petition and KOR's US support letter — Canadian citizens need no visa lottery, no quota, no consulate.

THE ENGAGEMENT, THE MONEY, THE CLOCK

Buy it as one quoted scope: **FOIA follow-up + written inadmissibility opinion + I-192 preparation and filing + TN support**. Expect roughly **US\$5,000–10,000 in legal fees + ~US\$1,200 in government fees** (I-192 \$1,100; TN \$80), and **~8–12 months** end-to-end: records and opinion ~2–3 months, waiver ~90–120 days after biometrics, TN days after that. First move: paid consults with **both** Tier-1 firms below — **Len Saunders** (Blaine, 360-332-7100), the volume specialist at your exact crossing, and **Scott Railton** (Cascadia, Bellingham, 360-671-5945), the strongest technical bench if the file turns out to contain an expedited removal or permanent-bar issue. Pick lead counsel after hearing both diagnoses. Until counsel clears you: **no border attempts, no NEXUS**.

Action list — in execution order

#	Action	Cost	When
1	Write your chronology (worksheet below). The single most important fact: the exact date you last left the US.	Free	Today
2	Gather every document in the checklist below; photograph everything CBP ever handed you.	Free	Today
3	File both FOIA requests (request text provided below): CBP via FOIA.gov, USCIS via first.uscis.gov. Responses take 1–3+ months — start now so the clock runs while you interview lawyers.	Free	This week
4	Call both Tier-1 firms (phone script below) and book paid consults. Verify each lawyer first at mywsba.org → Legal Directory → Quick Lookup.	~US\$300–1,300 total	This week
5	If any old paperwork shows an A-number (A#####), check the immigration-court system: call 1-800-898-7180 or acis.eoir.justice.gov (needs the A-number).	Free	When found
6	Attend consults, get written fee quotes for the full scope (FOIA follow-up + opinion + I-192 + TN), retain lead counsel .	—	Weeks 2–4
7	Counsel builds the I-192 package (Hranka factors: low risk, seriousness addressed, clear purpose); file via e-SAFE; biometrics; wait ~90–120 days.	US\$1,100 gov + legal	Months 2–8
8	Waiver approved → attorney-prepped TN "Engineer" application at the port with KOR support letter.	US\$80 gov + legal	After waiver

Tier 1 — book both consults all facts re-verified 2026-07-27

Len Saunders — The Immigration Law Firm, PLLC (Blaine, WA)

Best population fit

✓ 435 Martin Street, Suite 1010, Blaine WA 98230 ✓ (360) 332-7100 ✓ info@blaineimmigration.com (email deliverability verified) ✓ blaineimmigration.com • ~30 min from Vancouver

Practice built around Canadians refused at Peace Arch/Pacific Highway — work visas and waivers. WSBA since 1998 (✓ bio + Avvo), UBC grad, dual Canadian-US citizen. ✓ Staff includes **Danny, Waiver Case Manager** — a former CBP officer (joined 2015), who works primarily on waivers of inadmissibility. ✓ Active 2025–26 (CBC interviews May 2025). Reviews 4.4–4.8★/~150. **Fees not published** — ask on the call. Caveats: solo-attorney shop; some reviews cite a blunt manner; get scope + fees in writing.

W. Scott Railton — Cascadia Cross-Border Law (Bellingham, WA)

Best for complexity

✓ 1305 11th Street, Suite 301, Bellingham WA 98225 ✓ (360) 671-5945 (the only number on their site) ✓ cascadia.com — intake via the site's contact form • ~50 min from Vancouver

✓ Railton's live bio: routinely advises on "denied admissions, **expedited removal, waivers**, travel restrictions, NEXUS" and litigates admissibility/removal issues — the exact skill set while your refusal type is unknown. Past chair, AILA Washington chapter; Super Lawyers 2020–25. ✓ Firm practice list includes Waivers of Inadmissibility and TN visas; founder Greg Boos (WSBA since 1978, Who's Who Legal ~29 consecutive years) remains Counsel to the Firm; attorneys Heather Fathali and Halley Fisher round out the bench. No published consult fee — one unverified report suggests ~US\$1,000/90 min; confirm. **Note their form warning: nothing you submit through a website intake form is privileged — keep written pre-engagement contact high-level.**

Tier 2 — Vancouver-local alternatives

Millar & Hayes, PC — Seattle + Vancouver

✓ Seattle HQ: 2633 Eastlake Ave E, Suite 300 — (206) 262-0561 ✓ Vancouver: (604) 330-5550 (suite address in flux — firm page says 1166 Alberni St, newer directory says 744 W Hastings; confirm when calling) ✓ contact@usborderlaw.com

✓ Duncan Millar (WSBA #31204, 2001) confirmed practicing from both Seattle and Vancouver; ✓ dedicated inadmissibility page covering 212(d)(3)/I-192 waivers. Their old Bellingham office is closed. Small firm (~8 people) whose headcount shrank ~40% in the last year — probe capacity/turnaround at the consult.

Border Solutions Law Group — Vancouver + Bellingham

✓ Suite 408 – 837 W Hastings St, Vancouver ✓ (604) 684-4211 ✓ bordersolutionslaw.com ✓ Consult: \$250 CAD + HST (published)

✓ W. Mark Belanger genuinely dual-licensed (WSBA #34340, 2003 + Law Society of BC). Dedicated US entry-waiver service line; cheapest confirmed local consult. Generalist mix (also injury law) — ask what share of the caseload is complex waiver work.

Cross Border Visas — Surrey

✓ 15300 Croydon Drive, 3rd Floor, Surrey BC ✓ (604) 689-8472 ✓ crossbordervisas.com

✓ Douglas Cowgill: Washington-licensed + LSBC Practitioner of Foreign Law, based in the corridor. ✓ Explicitly lists "waivers of inadmissibility (I-192, I-212)" and TN work. Thinner public track record than Tier 1; one review flags slow call-backs.

Tier 3 — remote / value (Buffalo NY, work by video)

SRW Border Lawyers Only published pricing

✓ (716) 854-7525 ✓ srwborderlawyers.com ✓ Consults: US\$180 basic / US\$300 for waiver-or-prior-denial cases, credited to your bill if you retain within 48 h

✓ William Z. Reich (founder, 35+ yrs) and Zabrina V. Reich; ✓ dedicated pages for Form I-192, 212(d)(3) waivers, and expedited removal — a near-exact practice match. Caveat: minimal digital footprint (no reviews found, absent from business databases) — the \$300 consult is a low-risk way to judge them directly.

Richards & Jurusik Immigration Law

✓ Buffalo (716) 970-4007 • ✓ Toronto: 439 University Ave, Suite 500 — (866) 697-1832 ✓ rjimmigrationlaw.com — online booking (video/phone); free initial assessment option

Deeply Canada-focused (founded 2011; "Canadian inadmissibility" is a core practice keyword); 4.9★ across 400+ reviews — largest verified review base found. Publishes the best practitioner guidance on the June-2025 TN Engineer tightening. Flat-fee model, numbers by phone. Diligence note: one uncorroborated online allegation about a staff member could not be verified either way — run a routine NY bar-standing check if shortlisted.

Berardi Immigration Law (Rosanna Berardi)

✓ 2300 Wehrle Drive, Buffalo NY ✓ (877) 721-6100 ✓ berardiimmigrationlaw.com/book-a-consultation (per-attorney booking; Rosanna Berardi herself is by special appointment)

Founded 2005, ~26 staff (~20 legal), Toronto office. Berardi chairs AILA's CBP Liaison Committee — unusually relevant for a CBP-adjudicated waiver. 4.9★/34 reviews. Fees unpublished. (A Toronto premium option, Green & Spiegel, was researched but their site shows no explicit US waiver practice page — deprioritized.)

Avoid / caution

- **No NEXUS application, no "test" crossings** until counsel clears it. A border attempt risks expedited removal (5-year bar, INA 212(a)(9)(A)) or a misrepresentation finding (permanent, INA 212(a)(6)(C)). Never guess or shade answers to CBP — "I don't recall exactly" beats a wrong answer.
- **Waiver-marketing websites without a named, US-licensed attorney.** Several Vancouver-targeted "US entry waiver" operations are SEO fronts; one prominent one is an Ontario traffic-ticket firm. Verify every lawyer at mywsba.org (Legal Directory → Quick Lookup) before paying.
- **Big corporate immigration firms** — built for employer-sponsored volume filings, wrong shape for a personal inadmissibility case.

Verified costs & timeline

Item	Amount (USD)	Basis / timing
Consultations	\$180–\$300 published (SRW); \$250 CAD (Border Solutions); Tier 1 unpublished (~\$0–\$1,000)	book this week
FOIA (CBP + USCIS)	\$0 (fee applies only over \$25 of copying; first 100 pages free — 6 CFR 5.11 ✓)	1–3+ months for responses
I-192 government fee	\$1,100 flat, CBP- or USCIS-filed ✓ (8 CFR 106.2(a) (13), 2024 fee rule — sites still showing \$585 are stale)	~90–120 days after biometrics via e-SAFE; first approval often 1 yr, later renewals up to the 5-yr max
I-192 attorney fee	~\$1,500–\$5,000 (unpublished; get 2–3 written quotes)	—
TN at land border	\$80 ✓ (\$50 TN fee, 8 CFR 103.7(d)(11) + \$30 I-94 land fee since Sep 2025)	same-day at the port once admissible
TN attorney prep	~\$1,500–\$3,000	—
Realistic all-in	~\$5,000–\$10,000 legal + ~\$1,200 government	~8–12 months to working in California

Scripts — use these verbatim

Phone script — booking the consult

"Hi, my name is Omar _____. I'm a Canadian citizen in Vancouver. I need a paid consultation about a US inadmissibility matter: prior unlawful presence, and I've been refused entry at a land border. I want an opinion on which bars apply, whether I need an I-192 waiver, and eventually TN work authorization as an engineer. Four questions before we book: What is the consultation fee and length? Is it with the attorney personally? What documents should I send ahead? And how soon can you see me?"

Email script — consult request (keep it this high-level; written pre-engagement contact is not privileged)

Subject: Consultation request — Canadian citizen, inadmissibility / I-192 / TN

"Hello — I'm a Canadian citizen in Vancouver, BC seeking a paid consultation regarding US inadmissibility (prior unlawful presence and a refused entry), a possible I-192 waiver, and eventual TN status as an engineer. I have started FOIA requests for my CBP and USCIS records. Could you let me know your consultation fee, availability, and what documents you'd like in advance? Thank you, Omar _____, [phone]"

FOIA request text — CBP (file at FOIA.gov → agency: U.S. Customs and Border Protection)

"I request copies of all records pertaining to me held by CBP, including but not limited to: all TECS records; all border crossing (entry/exit) records; all records of encounters, secondary inspections, detentions, or refusals of admission at any port of entry; any Form I-275 (Withdrawal of Application for Admission); any Form I-860 (Notice and Order of Expedited Removal); any Form I-213 (Record of Deportable/Inadmissible Alien); any I-94 records; and all records concerning the retention and return by mail of my Canadian passport in approximately [month/year]. Full name: _____ [and any name variants]. Date of birth: _____. Country of birth: Mexico. Citizenship: Canada. Passport number(s): [current + the one that was confiscated/returned]. Approximate dates and ports of the encounters: _____."

Note: lookout records are often withheld under law-enforcement exemptions — an "empty-looking" response does not mean an empty file. This is why the earlier "file came back clean" report should not be relied on.

FOIA request text — USCIS (file at first.uscis.gov, choose the full A-file track)

"I request a complete copy of my Alien File (A-File) and any other records USCIS holds concerning me, including confirmation of any A-number assigned to me, any applications or petitions filed by me or on my behalf, and any records of removal or exclusion proceedings. [Same identity details as above.]"

If any response reveals an A-number, immediately check the immigration-court system: 1-800-898-7180 (enter the 9 digits, prepend 0 if yours has 8) or acis.eoir.justice.gov.

Questions the lawyer WILL ask — prepare these answers

1. **Full US timeline:** when you first entered, on which passport (Mexican or Canadian at the time?), any status you ever held, when the overstay began, and the exact date you last left. Reconstruct from old passports, leases, pay records, phone/photo history.
2. **Each refusal in detail:** date, port, what officers asked, what you answered, whether you were fingerprinted/photographed, and exactly what paperwork you were handed (I-275 vs I-860 changes everything).
3. **After you left, did you ever re-enter or attempt to re-enter the US without being admitted?** (This is the INA 212(a)(9)(C) permanent-bar question — the single most consequential answer.)
4. **Did you ever claim to be a US citizen, use anyone else's documents, or give a false identity** at any border or on any form? (Separate permanent bars — counsel must know the truth.)
5. **Did you work in the US without authorization?** (A decade of presence implies yes — say so plainly; it's expected and manageable in a waiver, but a lie is fatal.)
6. **Any arrests or charges anywhere**, even without conviction, even expunged.

7. **Your sister:** her immigration status, and exactly what her lawyer searched when the file "came back clean" (which system, which agency, FOIA or a database check).
8. **Your ties to Canada and purpose of entry:** KOR employment (role, tenure, salary), home, family — this is the evidence for the Hranka discretionary factors (low risk of harm, reasons for entry). A professional TN purpose with an established employer is a strong story.

Golden rule for every answer, forever: never guess, never shade. "I don't recall exactly, I'll check" is always safe; a wrong answer to a lawyer wastes money, and a wrong answer to CBP creates a new permanent bar.

Answers to questions you're probably asking

- **"Won't applying for a waiver put me on their radar?"** You're already on it — the refusal and passport episode guarantee a TECS record. The I-192 is the government's own sanctioned route back in; it's the opposite of a red flag. NEXUS, by contrast, invites an interrogation with no upside.
- **"What if the 10-year bar has already expired?"** Then your position is much better — but don't self-clear. The refusals may still sit as lookouts, and only a records-backed legal opinion should decide when you next present at a port.
- **"Why did my file 'come back clean'?"** Most likely the wrong system was checked or exempt records were withheld. CBP FOIA responses routinely omit lookout entries. Treat it as unknown, not clean.
- **"Can I visit my sister in the meantime?"** Not until counsel says so. Every attempt risks converting a soft refusal history into an expedited removal or misrepresentation finding.
- **"How long until I can work in California?"** Realistic: ~8–12 months (records + opinion ~2–3 months, waiver ~4–6, TN days after). First waivers are often granted for 1 year; renewals stretch toward the 5-year maximum.
- **"Does the waiver fix everything forever?"** No — it permits temporary (nonimmigrant) entry while it's valid. A green card someday is a different, harder path; park it until the TN is working.
- **"Will KOR sponsoring me help?"** Yes — TN requires a US employer engagement letter, and a stable professional job is strong Hranka evidence. KOR's US entity can provide the support letter when the time comes.
- **"My degree isn't labelled 'Engineering' — problem?"** Since June 2025, USCIS requires the degree (in engineering or a closely related discipline) or a professional engineering licence to match genuinely engineering job duties, with a specific job title. Bring your transcripts and any EGBC registration to the consult so counsel can pressure-test the TN fit early.

Document checklist — start collecting now

- Current Canadian passport + **every old passport** (Canadian and Mexican) covering the US years and the refusals — the confiscated-and-returned one especially, plus the return envelope/letter if kept.
- Canadian citizenship certificate/card; birth certificate; the date you became a Canadian citizen.
- Every document CBP ever handed you, photographed front and back. Look for form numbers (I-275, I-860, I-296, I-213) and any A-number (A#####).
- Your written chronology (US entries/exits, addresses, employers during the US decade — approximate is fine, labelled as approximate).
- Engineering degree + transcripts; EGBC (P.Eng/EIT) proof if any; current CV.
- KOR employment letter: role, tenure, salary (ties to Canada + future TN support).
- Ties evidence: CRA notices of assessment (2–3 years), lease/property, family in Canada.

- RCMP fingerprint-based criminal record check (counsel will likely want it for the waiver package — can be ordered when counsel confirms).
- From your sister: her lawyer's name, and copies of whatever search/FOIA produced the "clean file" result.
- FOIA responses (CBP + USCIS) as they arrive — forward to counsel unopened judgment; let them interpret.

Known verification gaps (flagged honestly)

- Bar admissions were confirmed via reputable aggregators (Avvo, open-data mirrors), not the official WSBA registry — it can't be queried automatically. Do the 2-minute manual check at mywsba.org before paying anyone.
- Millar & Hayes' Vancouver suite address conflicts between their own (stale) page and newer directories — confirm on the phone.
- Tier-1 consult fees are unpublished; the ~\$1,000 Cascadia figure is a single unverified report.
- e-SAFE processing (90–120 days from biometrics) matches multiple sources quoting CBP's FAQ, but CBP's own pages block automated verification — counsel will confirm current times.

v3, compiled and verified 2026-07-27. Contact facts cross-checked against firm websites (live fetches), Apollo and Hunter business databases, Avvo/bar aggregators, and review platforms. Government figures verified to primary sources where possible: 8 CFR 106.2(a)(13) (I-192 fee), 8 CFR 103.7(d) (TN/I-94 fees), 6 CFR 5.11 (FOIA fees), 8 U.S.C. 1182(a)(9) (bars), Matter of Hranka, 16 I&N Dec. 491 (BIA 1978). This document is research assistance, not legal advice; a retained attorney's word supersedes everything here.